

BANK OF AMERICA, N.A. v MANDELL

23CF14330

PLAINTIFF'S MOTION TO SET ASIDE DISMISSAL, ENTRY OF JUDGMENT

This case involves a dispute over credit card debt. The parties entered a settlement agreement which Bank of America ("Plaintiff") alleges has been breached by Gayle Mandell ("Defendant.") Now before the Court is Plaintiff's motion to set aside dismissal.

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Accordingly, the motion is **DENIED, without prejudice to refile** with the mandatory language.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

CONNOLLY v DE LA CRUZ

23CV46549

PLAINTIFF'S MOTION FOR PRELIMINARY INJUNCTION

This civil action stems from a lengthy and ongoing dispute concerning the upkeep and maintenance of an easement with associated drainage improvements, including culverts and ditches. Plaintiff Mark V. Connolly ("Plaintiff") filed this action to determine the parties' respective rights and duties, as well as to Quiet Title to an interest in land entitled the Cain Easement (a 161/2 foot strip of land north of the Cain Ranch property line) ("Cain Easement.") Plaintiff claims the Cain Easement is for cattle herding and grazing.

Defendant filed a cross-complaint to remove obstructions within the easement. The Court previously granted permission for Defendant to remove obstructions that were blocking the Cain Easement.

Now before the Court is Plaintiff's motion for preliminary injunction to prevent destruction of the grass used for grazing in the Cain Easement. Defendant has not filed an opposition. The lack of opposition may be construed by the Court as a concession that the motion has merit. (*Klaisle v. Zhao*, 2016 Cal. Super. LEXIS 21717; *Wildly v. Realty*, 2024 Cal. Super. LEXIS 45065 (failure to oppose may be viewed as abandoning a claim.)) [The Court notes defendant's counsel filed a document entitled "Declaration re Status of Settlement Agreement Communications that includes a couple of paragraphs addressing the motion before the Court. However, the Court finds in the form submitted the document does not amount to an "Opposition" and, furthermore, the comments regarding cows' preferences for various grasses are tantamount to gratuitous comments as the declaration contains no foundational elements to establish that counsel is qualified to render expert grazing opinions.]

I. Background Facts and Relevant Procedural History

Plaintiff owns APN parcels 048-025-034 and 050-002-120, commonly and collectively referred to as Cain Ranch (and hereinafter referred to as "the Ranch"). The Ranch was previously burdened by a 16.5 foot prescriptive easement belonging to Linkletter Properties for ingress and egress to adjacent property (with the right to erect a fence with a gate), but Plaintiff maintained a co-equal easement over a similar strip for cattle grazing and herding ("Grazing Easement.") According to Plaintiff, the dueling co-equal